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DEBRA BACHMAN

UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF CALIFORNIA

DEBRA BACHMAN, individually and on behalf of a class of similarly situated individuals,
Plaintiff,
v.
CHOSEN FOODS, LLC,
Defendant.

Case No. 3:26-cv-04862-AJB-MMP

CLASS ACTION COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF

CLASS ACTION

DEMAND FOR JURY TRIAL

1. Plaintiff Debra Bachman ("Plaintiff"), on behalf of herself and classes of similarly situated individuals defined below, brings this class action against Chosen Foods, LLC ("Chosen Foods" or "Defendant"), based on Defendant's false and deceptive advertising and labeling of its "Avocado Oil" mayonnaise and salad dressing products. Plaintiff makes the following allegations based on the investigation of counsel and on information and belief, except as to allegations pertaining to Plaintiff individually, which are based on her personal knowledge.

INTRODUCTION

2. This class action lawsuit arises out of Chosen Foods' use of false and deceptive marketing, advertising and product labeling to mislead consumers regarding its exclusive use of avocado oil in the manufacturing and preparation of its mayonnaise and salad dressing products.

3. Over the past several years, avocado oil has gained popularity in the culinary and consumer worlds. It is reported to have a variety of health benefits, such as reducing arthritis and improving skin.

4. Because of its many reported benefits, consumers seek out products containing or "made with" avocado oil instead of other vegetable or seed oils and are willing to pay more for them. As a result of this demand, avocado oil is "increasingly incorporated into processed foods such as snack products, mayonnaise, and salad dressings." Use of avocado oil in processed foods is "often motivated by consumer interest in perceived nutritional benefits and marketing strategies that differentiate products from those formulated primarily with seed oils."

5. Chosen Foods makes, markets, distributes, and sells food products, including mayonnaise, vegan mayonnaise, and salad dressings (the "Class Products") to consumers. The packaging on the Class Products

prominently and unequivocally represents that they are made exclusively with avocado oil (the "Avocado Oil Representations"). The ingredients listed on the back labels of these products also list avocado oil as the only fatty "oil" ingredient.

6. Reasonable consumers believe, based on the Avocado Oil Representations, that the Class Products are made only with pure authentic avocado oil and do not contain any other fatty oils, such as vegetable or seed oils.

7. Unbeknownst to consumers, however, the Class Products are instead made or adulterated with lesser-value non-avocado oils. Scientific testing by the University of California, Davis ("UC Davis") has confirmed that Chosen Foods mayonnaise and salad dressing products are not "made with" pure authentic avocado oil as represented.

8. From 2024 to 2026, Plaintiff purchased multiple Class Products from retailers in California. The Class Products purchased by Plaintiff prominently represented that they were made with avocado oil and listed avocado oil as the only fatty oil ingredient. Plaintiff read and relied on these statements when purchasing the Class Products. She would not have purchased the Class Products at the price she paid, or at all, had she known they were not made exclusively with pure avocado oil.

9. Chosen Foods' false and misleading representations caused and continue to cause consumers economic harm because Plaintiff and proposed Class members purchased and paid a price premium for the Class Products based on Chosen Foods' misleading Avocado Oil Representations.

10. Plaintiff seeks relief in this action individually and on behalf of all other similarly situated individuals who purchased the falsely and deceptively labeled Class Products during the statute of limitations period,

for violations of California's False Advertising Law ("FAL"), Cal. Bus. & Prof. Code § 17500, et seq., California's Unfair Competition Law ("UCL"), Cal. Bus. & Prof. Code § 17200, et seq., and California's Consumer Legal Remedies Act ("CLRA"), Cal. Civ. Code § 1750, et seq.

PARTIES

Plaintiff

11. Plaintiff Debra Bachman is an individual and resident of California.

12. Plaintiff purchased multiple Class Products from 2024 to 2026 at a Costco retail location in California for personal consumption. Plaintiff saw and relied on Chosen Food's Avocado Oil Representations in making her purchases. Plaintiff reasonably believed, based on the Avocado Oil Representations, that she was purchasing products made only with pure authentic avocado oil and no other types of oil, and this belief was fundamental to her decision to purchase the Class Products. Had Plaintiff known that the Class Products were made with oils other than avocado oil, she would not have purchased them, or she would have paid less for them. Plaintiff has suffered injury in fact and lost money as a result of Chosen Foods' misleading, false, unfair, and deceptive practices, as alleged herein.

Defendant

13. Defendant Chosen Foods, LLC ("Chosen Foods") is a limited liability company formed under Delaware law. Chosen Foods manufactures, labels, markets, distributes, and sells the Class Products at issue in this case online and at retail locations throughout California and the U.S. Chosen Foods is headquartered in California, with its principal place of business and mailing address listed with the California Secretary of State at 350 Camino de la Reina, Suite 400, San Diego, California 92108.

14. A substantial portion of the conduct giving rise to Plaintiff's claims, including the labeling, marketing, and sale of Class Products, took place in, and emanated from, California. In addition to its headquarters located in California, in March 2020, Chosen Foods announced its rebranding efforts to "highlight[] [its] roots in Coastal California and Central Mexico . . . in celebration of pure avocado."

JURISDICTION AND VENUE

15. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. § 1332(d) because it is a class action in which, on information and belief, the damages exceed $5 million, exclusive of interests and costs; the number of class members exceeds 100; and at least one member of the class(es) is a citizen of a state different from Defendant.

16. This Court has personal jurisdiction over Defendant because Defendant is headquartered in this District and continuously and systematically conducts business in this District.

17. Venue is proper in this Court pursuant to 28 U.S.C. § 1391 because, among other things, Defendant is headquartered in this District and a substantial part of the events giving rise to the claims occurred in this District.

FACTUAL ALLEGATIONS

A. The Class Products

18. The Class Products consist of various types and flavors of Chosen Food's mayonnaise and salad dressing products. The Class Products are sold in various sizes, including 32 oz., 24 oz., 12 oz or 11.25 oz. (mayo), 24 oz. or 12 oz. (vegan mayo), and 8 oz. (salad dressing) packages. Chosen Foods prominently displays its Avocado Oil Representation on each of the Class Products, stating unequivocally that the products are "MADE WITH 100% Pure AVOCADO OIL" and contain "GOOD FATS FROM AVOCADOS," with a cartoon picture of an avocado half, on the front label in the same or similar manner on all Class Products.

19. Additional statements on the side panel of the Class Product labels reinforce the Avocado Oil Representations. For instance, the side panel of the mayonnaise Class Products state: "OUR CLEAN & SIMPLE TAKE ON THIS CLASSIC SPREAD IS MADE WITH 100% PURE AVOCADO OIL AND IS 1000% DELICIOUS. MAYO DREAMS COME TRUE!" Below that, it says, unequivocally: "SOY & CANOLA OIL FREE."

20. The side panel of the salad dressing Class Products similarly claims that the products are "Made with 100% Pure Avocado Oil and simple ingredients . . ."

21. The Avocado Oil Representation on each of the Class Products conveys the unequivocal message that the Class Products are made solely with pure authentic avocado oil and no other fatty oils.

22. The Avocado Oil Representations are further reinforced by the ingredients listed on the Class Products' back labels, which list avocado oil as the only fatty "oil" ingredient.

23. Defendant's website has similar statements that communicate to consumers that its mayonnaise products are made only with avocado oil. For instance, the webpages for Defendant's various mayonnaise and vegan mayonnaise Class Products have an image that claims other mayonnaises are "not 100% pure" and are "mixed with sketchy ingredients," as compared to Defendant's mayonnaises, which are "made with 100% pure avocado oil."

24. The webpages for Defendant's various salad dressing Class Products have a similar image that claims other salad dressings are "not 100% pure" and are "mixed with sketchy ingredients," as compared to Defendant's salad dressings, which are "made with 100% pure avocado oil."

25. Upon information and belief, a substantial portion of Defendant's labeling, marketing and sale of the Class Products took place in, or emanated from, its California headquarters.

26. Defendant does not disclose anywhere that the Class Products are adulterated or "made with" any other fatty oils, and not solely "made with" avocado oil as represented. Reasonable consumers, like Plaintiff, thus reasonably believe that the Class Products are made exclusively with pure authentic avocado oil based on Defendant's Avocado Oil Representations.

27. The Class Products, however, are not made solely with avocado oil. To the contrary, independent testing performed by scientific researchers at UC Davis found that the fatty acid and sterol profiles of sampled Chosen Food products show that they are definitively not made with only avocado oil and are adulterated or "made with" other fatty oils instead. Defendant's unequivocal Avocado Oil Representations on the Class Products' labels are, thus, false and deceptive.

B. The Class Products Are Not Exclusively "Made With" Avocado Oil

28. Concerns regarding the authenticity of high-value edible oils are well documented, particularly for avocado oil. "Numerous studies have demonstrated that products marketed as avocado oil may be partially or wholly substituted with lower-cost vegetable oils or refined oils, resulting in mislabeling and economic adulteration." In response, a range of analytical approaches based on fatty acid composition, sterol profiles, and other minor components have been developed and applied to assess oil authenticity and support regulatory oversight.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, on behalf of herself and the proposed Classes, requests that the Court enter judgment against Defendant and grant the following relief:

(a) A declaration that Defendant's actions, as described herein, violate the claims described herein;

(b) An award to Plaintiff and the proposed Classes of restitution and/or other equitable relief, including, without limitation, restitutionary disgorgement of all profits and unjust enrichment that Defendant obtained from Plaintiff and the proposed Classes as a result of its unlawful, unfair and fraudulent business practices described herein;

(c) An award of injunctive and other equitable relief as is necessary to protect the interests of Plaintiff and Class members, including, inter alia, an order prohibiting Defendant from engaging in the unlawful acts described above;

(d) Damages as permitted by Cal. Civ. Code §§ 1780 and 1782(d);

(e) Payment of costs of the suit;

(f) Payment of attorneys' fees and costs under Cal. Code of Civ. Proc. § 1021.5 and Cal. Civ. Code § 1780(e);

(g) An award of pre- and post-judgment interest to the extent allowed by law; and

(h) Such other or further relief as the Court may deem proper.

DEMAND FOR JURY TRIAL

Plaintiff, on behalf of herself and the proposed Classes, hereby demands a jury trial with respect to all issues triable of right by jury.

Dated: August 25, 2026

Respectfully submitted,

KELLER GROVER LLP

By: /s/ Eric A. Grover
Eric A. Grover
Attorneys for Plaintiff and the Proposed Classes
DEBRA BACHMAN